RULES ON THE USE OF FORCE (RUF)

SEAGULL
MARITIME

Document Name:	Rules on the Use of Force
Document Type:	Procedure
Document Reference:	SMS/PRO/RUF/002
Issue Date:	14/03/2025

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1. Introduction

Seagull Maritime employ Standard Operating Procedures (SOPs) to ensure that all our armed maritime security Operators (also referred to as "MSO's") conduct their duties to the highest personal and professional standards. Notwithstanding current Best Management Practice, from time to time, there are circumstances that necessitate the employment of armed maritime security guards to impose effective protective security.

It is always assumed that vessel owners will not deploy armed guards without carrying out a detailed risk assessment and that vessel owners are aware that the deployment of armed guards is an additional layer of protection and not an alternative to the implementation of current Best Management Practice.

An armed response is only used in the most extreme of circumstances, where there is an imminent threat to life. The policy and procedures outlined within this document demonstrate the importance Seagull Maritime place on this capability and the mitigating measures that we put in place to avoid uncontrolled discharge of a weapon and ensure that any armed response is proportionate, legal, accountable and necessary in all the circumstances.

PART A - LAWS AND REGULATIONS

Governing Regulations

A-1 Any armed contractor being engaged (PCASP) by Seagull Maritime will operate in strict accordance with all applicable national and international laws and regulations, including the Controls, Codes and Protocols Governing the Use of Armed Force at Sea (see Annex A).

PART B – PRINCIPLES

Use of Force Principles List B1 – Use of Armed Force at Sea

B-1 The following Principles apply to the use of armed force at sea:

Principle One: Master's Authority

At all times the Master shall retain the ultimate control and responsibility for the safety and security of the Vessel and the rules set out in this RUF shall always be subject to the Master's ultimate authority which may be exercised by the Master in his discretion at any time.

Notwithstanding any other statement in this document, in the event the Team Leader has decided there is an actual, perceived or threatened attack the Team Leader shall advise the Master, or in his absence the office of the watch, that he intends to invoke the RUF. The Master of the vessel shall at all times have overall control of the vessel and any decisions made by the Master shall be binding. However, notwithstanding the aforementioned, each security personnel will always have an individual right of self-defence in accordance with the applicable national law.

Principle Two: Armed Force as a Last Resort

All reasonable steps must be taken to avoid the use of armed force. Armed force may only ever be employed following a graduated response escalation unless to do so would further endanger life.

Principle Three: Proportionality

Any use of armed force must be appropriate to the situation and proportionate to the threat; the use of excessive force must be avoided.

Principle Four: Deployment

Armed force must not be used except in self-defence or defence of others against a grave threat of death or serious injury, and only when there is no other way to prevent the threat.

Principle Five: Regulatory Compliance

At all times Seagull Maritime shall be in a position to demonstrate that our personnel, weapons, ammunition and equipment are ethical and comply with all national and international obligations applicable to regular law enforcement officials of the state of registration of the vessel and, as a minimum, with the standards expressed in Annex A.

Relevant documentation proving weapons authorisation will be carried by Seagull Maritime Privately Contracted Armed Security Personnel (PCASP) at all times.

Principle Six: Legal Compliance

Seagull Maritime PCASP must cooperate and always comply with the relevant internationally recognised laws, jurisdictions and their territorial laws and procedures.

Principle Seven: Reporting and Transparency

Seagull Maritime's Security Operations Centre will report at the earliest opportunity all incidents involving armed force to the vessel's Company Security Officer (CSO) and any other members of the vessel's General Management team as nominated to Seagull Maritime prior to an armed transit being embarked. All orders and actions shall be recorded and included in written reports.

Use of Force Principles List B2 – Apprehension and Treatment of Attackers

B-2 The following Principles apply to the apprehension and treatment of attackers at sea:

Principle Eight: Apprehension in Self-Defence

No person will be apprehended unless in self-defence, or the defence of others, against an imminent threat of violence, or following an attack or crime committed by such persons against vessel crew members or embarked Seagull Maritime PCASP.

Principle Nine: Repatriation

Any person apprehended in international waters will be repatriated to a Competent Authority at the earliest opportunity; the apprehension must be consistent with applicable national and international law.

(Seagull Maritime's Security Operations Centre will report at the earliest opportunity all such incidents to the vessel's Company Security Officer (CSO) and any other members of the vessel's General Management team as nominated to Seagull prior to an armed transit being embarked.)

Principle Ten: Treatment of Detainees

Any persons so apprehended will be treated humanely and consistent with their status and protections under applicable human rights law or international humanitarian law, including prohibitions on torture or other cruel, inhuman or degrading treatment or punishment. There are no justifications for engaging in torture or other cruel, inhuman or degrading treatment or punishment – this is without exception.

Principle Eleven: Reporting and Transparency

Any personnel, either vessel crew member or Seagull Maritime PCASP, must report any acts of torture or other cruel, inhuman or degrading treatment or punishment, known to them, or of which they have reasonable suspicion.

(Seagull Maritime's Security Operations Centre will report at the earliest opportunity all such incidents to the vessel's Company Security Officer (CSO) and any other members of the vessel's General Management team as nominated to Seagull prior to an armed transit being embarked.)

Principle Twelve: Treatment of Casualties

Any person who is injured and / or incapacitated (i.e. poses no further threat), must be treated medically to the best ability of the persons present, (be they vessel crew members or Seagull Maritime Team Members). The casualty(ies) should then be repatriated in accordance with Principle Nine.

(Seagull Maritime's Security Operations Centre will report at the earliest opportunity all such incidents to the vessel's Company Security Officer (CSO) and any other members of the vessel's General Management team as nominated to Seagull prior to an armed transit being embarked.)

Principle Thirteen: Handling Fatalities

In the event that an armed incident results in a fatality, regardless of the party, if practicable, all reasonable attempts must be made to ascertain and collate as much evidence as possible. If the deceased is a member of the vessel's crew or a Seagull Maritime PCASP, they should be handled and repatriated in accordance with the respective companies' standing instructions covering fatality at sea. If the deceased is an unauthorised third party (i.e. an attacker), they should be treated appropriately and repatriated in accordance with Principle Nine.

(Seagull Maritime's Security Operations Centre will report at the earliest opportunity all such incidents to the vessel's Company Security Officer (CSO) and any other members of the vessel's General Management team as nominated to Seagull prior to an armed transit being embarked.)

PART C – IMPLEMENTATION

Implementation of the Use of Force Principles

C-1 Wherever use of force is deployed, all reasonable and practical measures must be taken to ensure that the following principles are adhered to:

a. The safety of all involved personnel is paramount.
b. Minimise collateral damage and injury, and respect human life.
c. Security arrangements must respect human rights (especially the Voluntary Principles on Security and Human Rights - VPSHRs) and be consistent with the applicable legal principles.
d. Alternatives to use of force must always be considered.

Threat Assessment and Escalated Response

C-2 No armed force may be used unless a justifiable and imminent threat exists to warrant such a response. Any response must be reasonable in intensity, duration and magnitude relative to the perceived or demonstrated threat based on all the facts known at the time. The level of force used must be limited to that which is reasonably necessary to counter the threat.

C-3 Any armed response must cease immediately when it becomes clear that the threat no longer justifies continued armed action, as advised by the Seagull Maritime PCASP Team Leader [1] who orders the cessation of all firing.

[1] *All orders, instructions or direction emanating from the Seagull Maritime Team Leader assume, and are predicated on, his availability to deliver such orders. If he is unavailable such that orders (e.g. to open fire or cease firing) cannot be issued by him, the Seagull Maritime Team Member nominated as his Second-in-Command (2IC) or any other Seagull Maritime Team Member, may act in his stead, on the condition that all such orders or instructions, (including for the avoidance of any doubt, those of the Team Leader himself), are in strict compliance with the Rules on the Use of Force (RUF) at Form 1 and the rules and guidance laid down in this document.*

PART D - RULES ON THE USE OF FORCE (RUF) FOR INDIVIDUALS AUTHORISED TO CARRY FIREARMS ON COMPANY MANAGED VESSELS

Rules Concerning Weapon States (the Status of Weapons and Ammunition) On Board

D-1 For the purposes of deploying armed support for a client vessel by a Seagull Maritime PCASP Team, there are 3 weapon states:

a. Weapons **TIGHT**. In this state, all weapons and ammunition and associated ancillaries and equipment are securely locked in an appropriate cabinet, locker, container, weapons bag or compartment. Access is strictly subject to the permission of the Master and the Seagull Maritime Team Leader.

Magazines should only be de-charged (i.e. emptied of rounds) at the end of a transit when the vessel is alongside.

b. Weapons **HOLD**. In this state, weapons and ammunition are deployed and issued to the respective Seagull Maritime Team Members (see Form 4). Firearms will always be carried in an unloaded state (i.e., no magazine fitted to the weapon and no ammunition loaded into a weapon if no magazine) but any ammunition will be carried either within a magazine or as appropriate on the person of the Seagull Maritime Team Member. Safety-catches are to be applied unless about to fire. (Seagull Maritime do not own any firearms without a safety-catch (e.g., some types of revolvers).

c. Weapons **FREE**. In this state, authority to fire has been given by the Seagull Maritime Team Leader: the weapons may now be operated within the strict confines of these Rules on the Use of Force (RUF). In this state, all recording devices (e.g. digital recording media, Dictaphones etc) are to be activated. The Seagull Maritime Team Leader should attempt to return to Weapons **HOLD** as soon as possible after the emergency, whereupon any unloading of any weapon will be supervised by the Seagull Maritime Team Leader.

Rules Concerning Stowage of Weapons and Ammunition on Board

D-2 Weapons and ammunition will be stowed in weapons bags in a secured cabinet or facility (i.e. Weapons **TIGHT**). At an appropriate point once, the vessel has departed a port and moved beyond national waters (i.e. 12nm), but immediately before entry into the designated high risk area (HRA), if required, and with the written permission of the Master, weapons and ammunition may be released from storage and issued to the Seagull Maritime Team Members under the supervision of the Team Leader (i.e. move from Weapons **TIGHT** to Weapons **HOLD**) (see Form 4).

NOTE: Weapons and ammunition should only be moved from Weapons TIGHT to Weapons HOLD if there is a clear and credible threat on the transit route. Otherwise at all times, Weapons TIGHT should be observed.

These Rules on the Use of Force remain in force for the duration of the passage within the HRA (as designated by the International Maritime Organisation (IMO).

D-3 On existing the designated HRA, weapons and ammunition are always to be returned to secure stowage (Weapons **TIGHT**).

D-4 All weapons, ammunition and specialist items of equipment (i.e. radios and night vision devices) are to be issued and signed for under the supervision of the Seagull Maritime Team Leader. Once issued, the Team Leader will be accountable for the maintenance of a strict status log of all weapons, ammunition and equipment which must be mustered and accounted for in writing, by named individuals, at least once in every 24-hour period (see Form 2).

D-5 The release and re-stowage of weapons and ammunition is to be logged and recorded in writing and signed / counter-signed by both the Seagull Maritime Team Leader and the Master (see Form 4).

Rules Concerning the Decision to Open Fire

D-6 Once in the Weapons **HOLD** state, the Seagull Maritime Team Leader will have the discretion to order the Seagull Maritime Team to conduct such measures, up to and including the use of lethal force in self-defence or the defence of others against a grave threat of death or serious injury, and only when there is no other way to prevent the threat (escalation from Weapons **HOLD** to Weapons **FREE**).

Prior to operation of weapons by Seagull Maritime Team Members, it is critical that the Team Leader (and in his absence or unavailability, his 2IC or the individual Team Members) assesses any potential attack scenario to ascertain the intent of the attackers. It is only when, in his professional judgement, he is convinced of the attackers' intent to threaten life or serious injury that he may then authorise Team Members to operate their weapons in strict accordance with the RUF in Form 1.

As soon as is practically possible, the Team Leader is to submit a written report to the Master and Seagull Maritime Operations explaining his actions, augmented by statements from other Team Members if required. This statement must explain unequivocally why the action was taken.

Rules of Proportionality

D-7 The armed response must be measured and proportional to the attack it is designed to counter (see Form 1). Specifically:

a. Armed force must only be used as a last resort.
b. Only the minimum armed force necessary may be used.
c. Armed force may only be used in self-defence or the defence of others against a grave threat of death or serious injury, and only when there is no other way to prevent the threat.

Rules on Issuing a Challenge or Warning

D-8 A challenge - or warning - must be issued when a suspected attacker is approaching the vessel unless to do so would further endanger life, or where crew members, Seagull Maritime Team Members or others in the immediate vicinity are under armed attack and there is no other way to prevent the danger. Whilst the response escalation framework below gives a guide as to how the Team Members should respond to an attack scenario, if they are fired upon at any range, they may return fire in strict accordance with the RUF at Form 1.

a. **400m**: At a range of approximately 400 metres from the vessel, weapons are to be held in plain view by the Seagull Maritime Team Members where deemed safe to do so. This is to indicate clearly to any potential attackers that the personnel on board are armed.
b. **300m:** At approximately 300 metres, the Team Members may fire an aimed volley of approximately 2-3 single warning shots in the vicinity of the incoming skiff(s) (without targeting individual attackers) and remain with their weapons on aim. Shots should be aimed into the water at a safe distance from the incoming vessels to minimise the risk of harm.
c. **200m:** At approximately 200 metres from the vessel the Team Members may seek to disable the attacking craft's engines using all proportionate means, if in their professional judgement they can do so without any undue risk of unintentionally shooting any personnel in the craft.
d. **100m**: At approximately 100 metres from the vessel, the Team Members issue a verbal challenge by shouting, "stop or I fire" or words to that effect.

NOTE: The above is an ideal "best case" scenario, the Seagull Maritime Security Team Leader and Team Members should use their best efforts, judgement of the situation and skill set to respond at the appropriate distances where applicable.

Rules Concerning the Application of Lethal Force

D-9 If the above measures all fail and the attackers are in close proximity to the principal vessel; are attempting to board or have boarded the vessel; and/or are firing upon the crew or Seagull Maritime Team Members; are aiming or launching an RPG, the Team Members may open fire in self-defence or the defence of others against a grave threat of death or serious injury, and only when there is no other way to prevent the threat. As per the Master's ultimate authority he can order a ceasefire. However, this does not affect an individual's inherent right to self-defence.

D-10 If Seagull Maritime Team Members open fire, they must:

a. Fire only aimed shots.
b. Fire no more rounds than are necessary.
c. Take all reasonable precautions not to injure anyone other than their target.
d. Cease firing as soon as the threat to life or serious injury has itself ceased.
e. Have due regard for the safety of the principal vessel and the containment of hydrocarbons.

Rules to be Applied Post-Opening Fire

D-11 If, during the course of an armed attack, members of the attacking force are killed or injured, or their craft or vessels become damaged or destroyed, the Master may direct the following actions in consultation with the Seagull Maritime Team Leader that the threat no longer exists:

a. The deploying of a life-raft and survival equipment for the use of any survivors.
b. Contact the UKMTO and MSCIO with coordinates and details of the incident.
c. Await instructions from the UKMTO to assist in a rescue operation of any injured persons under SOLAS regulations (though this is at the Master's discretion).

D-12 After opening fire, any use of firearms must be fully investigated and reported by the Seagull Maritime Team Leader to the Seagull Maritime Security Operations Centre, who in turn without delay, will inform the vessel's CSO and any other members of the vessel's General Management team as nominated to Seagull Maritime prior to an armed transit being embarked

These reports must, as a minimum, cover the following (see Form 5):

a. An accurate written account by the Team Leader of the incident and the Seagull Maritime Team's response. This should be augmented with photographic and other supporting information (including video / CCTV records if available, and written statements by other Team Members or crew members if applicable). It must record locations of all Team Members and their respective actions. All relevant recording media (e.g. digital Dictaphones) are to be carried by each of the Team Members and activated if a suspicious vessel is sighted (Weapons **FREE**); these are to be collected and the information downloaded and saved on at least two separate devices.
b. Details of any firers, any weapons fired, and all ammunition expended.
c. Details of any first aid administered.

d. Details of any apprehensions made.
e. Any follow-up action or intentions of the team.

PART E – DOCUMENTATION

Form 1 - RUF Card for all Seagull Maritime Team Members

E-1 The following RUF card must be carried by all Seagull Maritime PCASP whilst they are onboard any client vessel:

GUIDANCE FOR OPENING FIRE FOR SEAGULL MARITIME PCASP AUTHORISED TO CARRY ARMS AND AMMUNITION ON DUTY

General

1. These guidelines do not affect your inherent right to self-defence.
2. Armed force, including lethal force, must only ever be used as a last resort.

Protection of Human Life

3. You may only open fire against a person in self-defence or in the defence of others against a grave threat of death or serious injury, and only when there is no other way to prevent the threat.

Challenging

4. A challenge must be given before opening fire unless:

   To do this would increase the risk of death or grave injury to you or any other persons other than the attacker(s); or

   You or others in the immediate vicinity are under armed attack.

5. You are to challenge by shouting: “Armed Security – Stop or I fire” or words to that effect.

Opening Fire

6. If you must open fire, you are to:

   a. Fire only aimed shots; and
   b. Fire no more rounds than necessary; and
   c. Take all reasonable precautions not to injure anyone other than your target.

Form 2 – Statement of Understanding and Compliance by the Seagull Maritime Team Members

E-2 The following form shall be signed individually by all Seagull Maritime PCASP prior to entering the designated HRA and/or where weapons status is moved to Weapons HOLD:

STATEMENT OF UNDERSTANDING AND COMPLIANCE

I .....(print name) hereby acknowledge that:

1. I have read and understood the Seagull Maritime **RULES ON THE USE OF FORCE** document. I have had the opportunity to clarify any areas of this document. I agree to operate strictly within these Rules.

2. My Team Leader has read the **GUIDANCE FOR OPENING FIRE FOR SEAGULL MARITIME PCASP AUTHORISED TO CARRY ARMS AND AMMUNITION ON DUTY** to me: I have read and understand this document. I have been issued with my own copy of this document. I will carry this document on my person for the duration of the passage. I have had the opportunity to clarify any areas of this document.

3. My personal weapon [2] details are:

a. Type: .....
b. Serial Number: .....

4. I have been issued with the following ammunition:

Quantity: .....rounds

Calibre: .....

Other unique identifying features: .....

5. Where available, I have been issued with the following recording equipment:
a. Audio:
b. Serial Number:
c. Video:
d. Serial Number:

6. I will not carry or discharge any other ammunition than that issued to me (4. above).

7. I will not operate or discharge any weapon other than my own personal weapon (3. above) unless it is justified by a specific security situation. If this occurs, I will explain the circumstances in a written report.

8. I will always carry and operate my weapon in a safe manner. I will take due consideration of the safety requirements of the vessel, especially the need for hydrocarbon containment.

9. I will account for, and sign for, the following items as issued, at least once in every 24-hour period:

a. My personal weapon.
b. My ammunition.
c. My weapon system ancillaries (sight(s); sighting scopes etc).
d. Any itemised security related equipment (night vision devices; digital recording means including Dictaphones, cameras, radios etc)
e. My personal copy of the **GUIDANCE FOR OPENING FIRE FOR SEAGULL MARITIME PCASP AUTHORISED TO CARRY ARMS AND AMMUNITION ON DUTY** document.

Seagull Maritime Team Leader	**Seagull Maritime Team Member**
.....(print name)	.....(print name)
.....(signature)	.....(signature)
.....(date)	

[2] *The term 'personal weapon' refers to an authorised weapon, purchased, owned and licensed legitimately by Seagull Maritime, and issued to an identified Seagull Maritime Team Member.*

Form 3 - Statement of Understanding and Compliance by the Ship's Master or Officer of the Watch (OOW)

E-3. The following form shall be signed by the Master and all OOWs of the principal vessel:

STATEMENT OF UNDERSTANDING AND COMPLIANCE BY THE SHIP'S MASTER OR OFFICER OF THE WATCH (OOW)

1. I .....(print name) of .....(vessel name) have read and understood the Seagull Maritime **RULES ON THE USE OF FORCE** document.

2. I have been formally briefed by the Seagull Maritime Team Leader .....(name).

3. I acknowledge that in all cases any action involving the discharge of firearms by the Seagull Maritime Team Members will be in accordance with the Seagull Maritime **RULES ON THE USE OF FORCE** document.

4. This document in no way places accountability of the actions of the Seagull Maritime Team Members with the Master or OOW.

5. Each Seagull Maritime Team Member has signed to endorse compliance with the Seagull Maritime **RULES ON THE USE OF FORCE** document and the **GUIDANCE FOR OPENING FIRE FOR SEAGULL MARITIME PCASP AUTHORISED TO CARRY ARMS AND AMMUNITION ON DUTY.**

6. The responsibility for any incident involving the discharge of firearms by Seagull Maritime Team Members will always and entirely be the responsibility of the Seagull Maritime team member however the Master shall retain the ultimate control and responsibility for the safety and security of the Vessel.

Team Leader	**Master / OOW**
.....(print name)	.....(print name)
.....(signature)	.....(signature)
.....(date)	.....(date)

Form 4 – Authorisation to Release Weapons and Standing Orders Pursuant to the Rules on the Use of Force (RUF)

E-4. Prior to entering the designated HRA, the Master, in consultation with the Seagull Maritime Team Leader, may authorise the Team Leader (i.e. authorise Weapons HOLD and Weapons FREE) such that the latter may take the decision to open fire should in his professional opinion the situation dictate.

The following form should then be completed:

AUTHORISATION TO RELEASE WEAPONS FROM STOWAGE AND STANDING ORDERS PURSUANT TO THE RULES ON THE USE OF FORCE

1. I .....(print name) of .....(vessel name) hereby authorise the release of weapons from stowage (Weapons **TIGHT**) and to permit their carriage by the Seagull Maritime Team Members (Weapons **HOLD**) as required.

2. I .....(print name) of .....(vessel name) hereby authorise the Seagull Maritime Team Leader, using his discretion, to order the escalation from Weapons **HOLD** to Weapons **FREE** in accordance with the **RULES ON THE USE OF FORCE** document.

3. I ……(print name of Master) understand that by signing this document, I am permitting the use of armed force to be employed to counter a specific and identified threat, but always under the command and direction of the Seagull Maritime Team Leader. However, at all times I shall retain the ultimate control and responsibility for the safety and security of the Vessel.

4. I will reverse this authorisation on departing the designated HRA or immediately upon recognition that no threat is prevalent.

Team Leader	**Master**
.....(print name)	.....(print name)
.....(signature)	.....(signature)
.....(date)	.....(date)

Form 5 - Incident Report Template

E-5. Following an armed incident, an accurate written account of all relevant events is to be taken and submitted.

The following form is to be completed:

Report Author (Name, Appointment)		Signature		
Report Reference Number		Date		
Description of Incident *[Expand box as required; to include photos; maps; charts; vessel GA; sketches; schematics]*				
Weapon Serial Number	Weapon Type	Firer	Rounds Fired	Remarks
(a)	(b)	(c)	(d)	(e)
Details of Casualties on Principal Vessel *[To include Names of casualties; type and extent of injuries; medical treatment administered; prognosis / future intentions]*				

Details of Casualties amongst Attackers *[To include numbers of casualties; type and extent of injuries; medical treatment administered; prognosis / future intentions]*
Details of any Apprehensions of Attackers Made *[To include names of detainees; circumstances of capture; details of holding area and conditions; future intentions]*
Details of any Evidence Collated *[To include CCTV footage; photographs; written statements; aural (Dictaphone) and video records]*
Potential for Adverse Media Reporting *[Likelihood of media involvement; any filming by attackers; any potential VPSHR breaches]*
Future Intentions *[By Master and Seagull Maritime Team Leader]*

ANNEX A

Controls, Laws and Protocols Governing the Use of Armed Force at Sea

A. Extant Seagull Maritime Management System & SOP Control Framework.

- Accountabilities allocated to specific posts.
- Requirement for:
  - Security Plans, Operational Procedures and Risk Assessments
  - Review of Security Threat Levels
  - Execution of Risk Management Plan
- Apply VPSHRs

B. Voluntary Principles on Security and Human Rights (VPSHRs).

http://www.voluntaryprinciples.org/principles/introduction

- Governments, companies and NGOs engaged in a dialogue on security and human rights.
- Security is a fundamental need, shared by individuals, communities, businesses, and governments.
- Governments have the primary responsibility to promote and protect human rights.
- Companies recognize a commitment to act in a manner consistent with the laws of the countries within which they are present.
- Recognize the value of engaging with civil society and host and home governments.
- The importance of sharing and understanding our respective experiences regarding, inter alia, best security practices and procedures

C. United Nations Basic Principles on the Use of Force and Firearms by Law Enforcement Officials (1990)

http://www2.ohchr.org/english/law/firearms.htm

- Keep the ethical issues associated with the use of force and firearms constantly under review.
- Develop a range of means as broad as possible, that would allow for a differentiated use of force and firearms.
- Officials, in performing their duty, shall, as far as possible, apply non-violent means before resorting to the use of force and firearms.
- Exercise restraint; minimise damage and injury; respect human life; provide medical assistance to injured persons; notification at the earliest possible time to superiors and relatives.

D. Code of Conduct for Law Enforcement Officials Adopted by General Assembly resolution 34/169 of 17 December 1979

http://www2.ohchr.org/english/law/codeofconduct.htm

- Officials shall respect and protect human dignity and maintain and uphold the human rights of all persons.
- Force to be only when strictly necessary and to the extent required for the performance of duty.
- No officials may instigate or tolerate any act of torture or other cruel, inhuman or degrading treatment or punishment.
- Officials shall ensure the full protection of the health of persons in their custody.
- Officials shall respect the law.

E. Convention for the Suppression of Unlawful Acts Against the Safety of Maritime Navigation (Rome, 10 March 1988)

http://www.admiraltylawguide.com/conven/suppression1988.html

- Everyone has the right to life, liberty and security of person.
- Unlawful acts against the safety of maritime navigation jeopardize the safety of persons and property.
- All states, in combating unlawful acts against the safety of maritime navigation, must strictly comply with rules and principles of general international law.
- Any person commits an offence if they unlawfully and intentionally seize a ship by force or threat thereof; perform an act of violence against a person on board a ship or the ship itself; injure or kill any person so doing.
- The master may deliver to the authorities of any other State any person who he has reasonable grounds to believe has committed one of the offences set out above.

F. International Code of Conduct for Private Security Service Providers dated 9 Nov 2010 ("Montreux Document")

http://www.eda.admin.ch/psc

- PMSCs are obliged to comply with international humanitarian law, human rights law and applicable national law, and specific regulations on private military or security services.
- PMSC personnel are subject to prosecution if they commit conduct recognised as crimes under applicable national or international law.
- Criteria for selection of PMSCs
- Contract terms with PMSCs.
- Guidance on monitoring compliance and ensuring accountability.
- Rules on the provision of services by PMSCs and their personnel, including appropriate rules on the use of force and firearms and on the possession of weapons by PMSCs.

G. International Association of Oil and Gas Producers (OGP), Report 320 Revision 2, Firearms and the Use of Force, dated Feb 2010

http://www.ogp.org.uk/pubs/320.pdf

- The safety of all involved personnel is paramount.
- Minimise damage, injury, and respect and preserve human life.
- Security agreements should respect human rights and be consistent with the applicable legal principles.
- Alternatives to armed protection should be considered.
- All those carrying arms on behalf of the company should be professionally trained security professionals.

H. Guidance notes and extant Best Management Practice (BMP) as published by the International Maritime Organisation (IMO)

https://www.imo.org/en/OurWork/Security/Pages/Default.aspx

- Best Management Practice version 5 (BMP 5) published in 2018.
- Somali piracy risk assessment
- Ship and company planning procedures.
- Ship protection measures, including reference to armed protection.
- Situations: pirate attack; if the pirates take control; if the military respond
- Reporting and contact details

ANNEX B

Emergency Contact Details

Maritime Security Centre Indian Ocean (MSCIO)

- Website: https://www.mscio.eu
- Telephone: 0033 (0) 298 220 220 / 0033 (0) 298 220 170
- Email: postmaster@mscio.eu

United Kingdom Maritime Trade Operations

- Website: https://www.ukmto.org
- Telephone: +44 (0) 2392 222060
- Email: watchkeepers@ukmto.org

Combined Maritime Forces (CMF):

- Website: https://combinedmaritimeforces.com
- Telephone: +973 1785 9017
- Email: cmf_info@me.navy.mil

Seagull Maritime Limited 24/7 OPS Centre:

- Website: https://seagullmaritimeltd.com
- Telephone: +44 (0) 20 3519 9772
- Email: ops@seagullsecurity.com